LAW GROUP

Our Business is Your Future

AFTER FILING FORM I-130:

REMOVAL PROCEEDINGS



"We have become not a melting pot but a beautiful mosaic. Different people, different beliefs, different yearnings, different hopes, different dreams."

President Jimmy Carter

SCAN THE QR CODE AND REQUEST APPOINTMENT TODAY

Visit our office:
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AFTER FILING FORM I-130:
IF YOU ARE IN REMOVAL PROCEEDINGS

1. RECEIPT NOTICE

Within a few weeks of filing, you should receive a Form I-797, Notice of Action (Receipt Notice), confirming that USCIS has received your application. Keep this notice safe, as it contains important information such as your receipt number, which you can use to track your case online.



2. INFORM THE IMMIGRATION COURT

Notify the immigration court handling the removal proceedings about the filing of Form I-130. This can be done through us or by submitting a notice directly to the court. Provide a copy of the I-130 receipt notice to the court to keep them informed about the ongoing immigration process.



3. ATTEND ALL COURT DATES

Continue attending all scheduled court hearings and proceedings as required by the immigration court. Failure to appear at these hearings may negatively impact the beneficiary's immigration case.



4. REQUEST A STAY OF REMOVAL OR PROSECUTORIAL DISCRETION

If the beneficiary is eligible, we may explore the possibility of requesting a stay of removal from the Immigration court or Prosecutorial discretion to terminate the case. A stay of removal temporarily halts the deportation process and provides an opportunity for the I-130 petition to be adjudicated.



5. PROVIDE UPDATED CONTACT INFORMATION

Ensure that the Immigration court and USCIS, have updated contact information for both the petitioner and beneficiary. This includes mailing addresses, phone numbers, and email addresses.



6. FOLLOW USCIS UPDATES

Regularly check the USCIS website or contact USCIS customer service to obtain updates on the status of the I-130 petition. USCIS may issue Requests for Evidence (RFEs) or other notices that require timely responses.



7. MAINTAIN OPEN COMMUNICATION

Maintain open communication with us and promptly provide any additional documentation or information requested by USCIS or the immigration court.



8. ATTEND USCIS BIOMETRICS APPOINTMENT (IF REQUIRED)

If USCIS schedules a biometrics appointment for the beneficiary, ensure timely attendance. Biometrics are typically collected to conduct background checks as part of the immigration process.



9. BE PREPARED FOR THE NEXT STEPS

Stay informed about the potential next steps in the immigration process, including adjustment of status interviews and potential eligibility for relief from removal. If you encounter challenges or have concerns during the process, contact us and we will be happy to assist you and help you resolve your issues/concerns.



The process may take some time, but with patience and diligence, you can navigate the post-filing period successfully. Best of luck on your journey to obtaining permanent residency in the United States!

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